

MARKET RELEASE  
Date: 26 March 2015  
Release: Immediate

**Genesis Energy Limited (GNE) – Amended Trading in Company Securities Policy**

Genesis Energy advises that it has amended its Trading in Company Securities Policy and this has been approved by the Board of Directors on 23 March 2015.

References to the now repealed Securities Markets Regulations 2003 have been updated to reflect the Financial Markets Conduct Act 2013, and other changes include the incorporation of the recently revised NZX Ongoing Disclosure Notice (which is an appendix to the policy).

A copy of the amended policy is **attached**.

For more information visit our website on [www.genesisenergy.co.nz](http://www.genesisenergy.co.nz)

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# Trading in Company Securities Policy

March 2015

## Introduction

This Trading in Company Securities Policy ('**Policy**') relates to dealings in securities and other financial products, including Genesis Energy shares and sets out the fundamental principles for Genesis Energy Persons (defined below), of trading in company securities within a listed environment which are:

- Insider trading is prohibited at all times;
- Short term trading is discouraged;
- Additional trading restrictions apply if you are a Restricted Person (defined below).

## Purpose

This Policy sets out the responsibilities of all Genesis Energy Directors, officers, employees, contractors and secondees at Genesis Energy (including its subsidiaries ('**Genesis Energy Group**')) ('**you**' or '**Genesis Energy Person**').

This Policy applies to any Trading (defined below) in Securities (defined below) in which you are involved, whether or not the Security is held or received in your own name or that of your spouse or partner, dependent children and/or trusts of which you are a trustee or any company which you control.

If you are unsure or do not understand any part of this Policy, or how it applies to you, it is important that you raise the matter with the General Counsel and Company Secretary before Trading or disclosing any information in relation to Securities. Any guidance sought from the General Counsel and Company Secretary will not affect your individual responsibility to comply with the obligations under this Policy.

'**Securities**' means:

- Ordinary shares of Genesis Energy which are quoted on the NZX Main Board ('**NZX**') and Australian Stock Exchange ('**ASX**') ('**Shares**');;
- Genesis Energy capital bonds quoted on the NZDX market ('**Capital Bonds**');;

- Any other securities of Genesis Energy or any member of the Genesis Energy Group and any options or derivatives (including futures contracts quoted on an authorised futures exchange) created over or in respect of any securities of any member of the Genesis Energy Group; and
- NZ electricity futures contracts that are traded on ASX.

'**Trading**' in Securities means buying or selling securities, or agreeing to do so, whether as principal or agent (and '**Trade**' has a corresponding meaning), but does not include:

- Acquisitions and disposals by gift or inheritance; and
- Acquisitions through an issue of new quoted securities, such as an issue of new debt securities or an issue of shares on the exercise of options, under a rights issue, or a dividend reinvestment plan.

## Scope

This Policy applies to all Genesis Energy Persons, and is divided into three parts:

1. **Part 1** - The two key rules that apply to all Genesis Energy Persons;
2. **Part 2** - The three additional rules that apply to Restricted Persons (defined below); and
3. **Part 3** - General provisions applying to all aspects of Trading.

'**Restricted Persons**' are the following individuals who have additional Trading Restrictions:

- All Directors of members of the Genesis Energy Group;
- The Chief Executive and all senior managers of Genesis Energy (being all those persons who report to the Chief Executive) and those directly reporting to those persons;



- Trusts and companies controlled by such persons; and
- Anyone else notified by the General Counsel and Company Secretary from time to time as being subject to these additional restrictions.

## Part 1 - Rules for all Genesis Energy Persons

### Key Rule #1 - Insider Trading is Prohibited at all Times

Insider trading is Trading in Securities while in possession of Material Information (defined below) that is not generally available to the market and this is prohibited at all times by Genesis Energy Persons.

'Material Information' means information that:

- Is not "generally available" to the market; and
- If it were generally available to the market, would have a material effect on the price of the securities.

Information is considered to be "generally available" to the market if:

- It has been made known in a manner that would, or would be likely to, bring it to the attention of persons who commonly invest in the Securities and, since it was made known, a reasonable period for it to be disseminated among those persons has expired; or
- It has been released as an NZX and ASX announcement (or, in the case of plant outages on the Planned Outage Co-ordination Process (POCP) website); or
- It is likely that persons who commonly invest in the Securities can readily obtain the information (whether by observation, use of expertise, purchase or other means); or
- It is information that consists of deductions, conclusions or inferences made or drawn from the kinds of information referred to above.

Examples of Material Information are included at page 4 and 5 of this Policy for your reference.

As a Genesis Energy Person, if you possess Material Information, you must not:

- Trade in Securities; or
- Advise, encourage or procure other people to buy or sell, or continue to hold any Securities; or
- Advise or encourage a person to advise or encourage another person to buy or sell or continue to hold Securities; or
- Pass on the Material Information to anyone else – including colleagues, family or friends – knowing (or where you ought to have known) that the other person will use that information to buy or sell, continue to hold, or advise or encourage someone else to buy or sell, or continue to hold, Securities.

The prohibitions apply regardless of how you learn of the Material Information (including whether you learn it in the course of carrying out your responsibilities, overhear it in a lift or at a social function) and regardless of why you are Trading.

You cannot avoid "Key Rule 1" by Trading in Securities through companies or trusts you control. If the companies or trusts that you control, Trade in Securities while you have Material Information, you will be deemed to have traded in the Securities.

In addition to the above, if you have Material Information in relation to the listed securities of another issuer (including futures contracts listed on an authorised futures exchange) then you must not Trade in those securities. You may obtain such Material Information while a Director of, or working for, a member of the Genesis Energy Group.<sup>1</sup>

### Key Rule #2 – Short Term Trading Must have Pre-Approval

Short term Trading is discouraged.

You should not engage in short term Trading (i.e., the buying or selling within a 3 month period), unless there are exceptional circumstances, that are first discussed with and approved by the General Counsel and Company Secretary.

<sup>1</sup> You should also note that, even if you cease to be a Genesis Energy Person, prohibitions will still apply to you at law if you remain in possession of Material Information.



Short term Trading can be a key indicator of insider trading, particularly if undertaken on a regular basis, in large amounts or around important events which affect the price of the Securities. These events may not be expected or known by you, but if they do occur, your short term Trading may be viewed adversely with the benefit of hindsight. Therefore, to reduce the risk of an allegation of insider trading, do not Trade Securities on a short-term basis.

Where Genesis Energy Persons are entitled to participate in any equity-based remuneration scheme, they must not enter into any transaction for any 'Associated Product'. An Associated Product is any product which has the effect of limiting the economic risk of participating in any entitlement a Genesis Energy Person is eligible for under the remuneration scheme.

## Part 2 - Rules for Restricted Persons

These additional trading restrictions apply to Restricted Persons. These additional restrictions also apply to any spouse and dependant of a Restricted Person.

Where the spouse or dependent of a Restricted Person wishes to Trade in the Securities, the Restricted Person must ensure that the requirements under Additional Rule #1 and Additional Rule #2 (below) are complied with, including the completion of the "Request for Consent to Trade in Securities" (Appendix E) and the applicable exchange disclosure notice (**attached** to this Policy) on behalf of their spouse or dependant.

### Additional Rule #1 - Pre-approval prior to Trading

**Restricted Persons must seek pre-approval for any Trading in Securities.**

If you are a Restricted Person, before you (or your spouse or dependant) Trade in Securities, you must, in writing:

- Notify the General Counsel and Company Secretary of the intention to Trade in the Securities using the "Request for consent to Trade in Securities" form (**attached** to this Policy at Appendix E);
- Confirm that you do not hold "Material Information";
- Confirm that there is no known reason to prohibit the Trading in the Securities; and

- Request the consent of Genesis Energy to the Trade.

Each request by:

- A Restricted Person who is a Director or the Chief Executive will be presented to the Chairman of the Board (and in the case of a request by the Chairman of the Board, to the Chairman of the Audit and Risk Committee) for consideration; and
- A Restricted Person, who is not a Director or the Chief Executive, will be presented to the Chief Executive for consideration.

The Restricted Person will be advised in writing whether consent has been given.

Should consent be given it will only be valid for a period of 10 trading days after the granting of consent. The consent is automatically deemed to be withdrawn if the relevant Restricted Person becomes aware of Material Information prior to Trading in Securities.

### Additional Rule #2 - Information to be Provided

**Restricted Persons must provide certain information in relation to the Securities to the General Counsel and Company Secretary.**

A Restricted Person must advise the General Counsel and Company Secretary, in writing, promptly following:

- Any subscription for new Securities (which includes participation in the Genesis Energy Employee Share Scheme); and
- Completion of any Trade in Securities.

The Restricted Person must provide details of the Trade or subscription to the General Counsel and Company Secretary, including the number, price and class of the Securities subscribed for or traded using the applicable exchange disclosure notice (**attached** to this Policy).<sup>2</sup>

This obligation is in addition to compliance with any disclosure obligations under the Financial Markets

<sup>2</sup> Note Appendix A relates to NZX initial disclosures for new Directors and Senior Managers and Appendix B is the ASX equivalent for initial Directors' disclosures. Appendix C and D relate to ongoing disclosures (in relation to acquiring or disposing of any Securities) for the NZX and ASX respectively.



Conduct Act 2013 ('**FMCA**'). In broad terms, the FMCA requires Directors and Senior Managers (being the Chief Executive and his or her direct reports) to disclose details of the subscription or Trade to the NZX within five trading days of the date of the subscription or Trade.<sup>3</sup>

The details of every completed Trade by a Restricted Person will be recorded in a register maintained by the General Counsel and Company Secretary.

## Additional Rule #3 - 'Blackout' Periods

**Trading in Securities during a Blackout Period (defined below) is prohibited, except in exceptional circumstances.**

'**Blackout Period**' means Restricted Persons may not Trade in the Securities during any of the following Blackout Periods:

- From the close of trading on 31 May until the first trading day after the full-year results are released to NZX and ASX;
- From the close of trading on 30 November until the first trading day after the half-year results are released to NZX and ASX; and
- 30 days prior to release of a prospectus for a general public offer of the same class of Securities.
- Any other period that the General Counsel and Company Secretary may specify from time to time.

Restricted Persons are not permitted to Trade in any Securities during a Blackout Period unless a specific exemption is granted, due to exceptional circumstances (examples of which are discussed below).

## Apply under Exceptional Circumstances

If a Restricted Person needs to Trade in Securities during a Blackout Period due to exceptional circumstances, the Restricted Person must, using the 'Request for Consent to Trade in Securities' form (**attached** at Appendix E to this Policy):

- Seek approval to Trade and explain why an exemption is being sought;
- Confirm they do not hold any Material Information;
- Confirm that there is no other reason to prohibit the Restricted Person from Trading in the Securities.

Approval will only be granted if the circumstances giving rise to the request are considered, by the Chief Executive in his/her sole discretion (or the relevant Director as set out below), to be exceptional (for example, severe financial hardship where the person has pressing financial commitment that cannot be satisfied otherwise than by selling the Securities or compulsion by a court order or court enforceable undertakings or other legal or regulatory requirements).

A request from a Director or the Chief Executive for approval to Trade in a Blackout Period must be considered and approved by the Chairman of the Board or, in the Chairman's absence, the Chairman of the Audit and Risk Committee. A request to Trade in a Blackout Period by the Chairman of the Board must be signed by the Chairman of the Audit and Risk Committee or, in the Chairman of the Audit and Risk Committee's absence, the Chairman of the Human Resources and Remuneration Committee.

If approval is granted to Trade during a Blackout Period, the Restricted Person will be notified in writing and in each circumstance the duration of the approval to Trade in the Securities will be two trading days from the date of notification.

Approval is deemed to be automatically withdrawn if the person becomes aware of Material Information prior to Trading.

## General Provisions

### Monitoring of Trading

Genesis Energy may monitor the Trading of all Genesis Energy Persons subject to this Policy as part of the administration of this Policy.

### Confidential Information

At all times you owe a duty of confidentiality to Genesis Energy (including any member of the Genesis Energy Group which may employ you or to whom you provide services).

<sup>3</sup> Although in the case of acquiring shares under the employee share scheme, this time frame is 20 trading days, but as a matter of best practice and consistency, a 5 trading day notice will be applied.



You must not reveal any confidential information concerning Genesis Energy to a third party (unless you have been authorised to disclose the confidential information), or use confidential information in any way which may injure or cause loss to Genesis Energy, or use confidential information to gain an advantage for yourself. You should endeavour to ensure that external advisers keep Genesis Energy information confidential.

If confidentiality is breached, this may result in Genesis Energy being required to disclose sensitive information about Genesis Energy or the Genesis Energy Group. In some circumstances, a breach of the duty of confidentiality could result in Genesis Energy breaching the NZX Main Board Listing Rules or ASX Listing Rules.

### Breaches of Policy

A breach of this Policy is a serious matter and may result in disciplinary action, which may include termination of employment or appointment.

Any breach or suspected breach of this Policy should be reported to the General Counsel and Company Secretary.

### Additional Examples of Material Information

Examples of Material Information might include:

(a) In relation to the Capital Bonds, Shares and other equity securities:

- the financial performance or a change in the financial performance of Genesis Energy (including a change in financial forecasts or expectations);
- a change in dividend policy;
- a recommendation or decision to declare or not declare a dividend;
- a change in Genesis Energy's capital structure;
- Genesis Energy's ability to pay interest on debt and repay principal on maturity;
- any changes, or indicators of review of, Genesis Energy's credit rating;

- a change in the strategic direction of Genesis Energy or the general nature of its business;
- the introduction of an important new product or service;
- a material purchase or sale of assets or shares by Genesis Energy;
- changes to, or issues of, Genesis Energy shares or debt securities;
- a joint venture partner or subsidiary;
- entry into or the likely entry into or termination or likely termination of material contracts or other business arrangements which are not publicly known;
- industry issues that have, or which may have, a material impact of Genesis Energy;
- decisions on significant issues affecting Genesis Energy by regulatory bodies;
- changes in the Board of Directors, Chief Executive, the Genesis Energy Senior Management or the Auditor;
- a material legal claim brought by or against the Genesis Energy;
- confidential information about Genesis Energy which has been disclosed or leaked;
- an event that may result in significant reputational harm to Genesis Energy.

(b) In relation to NZ electricity derivatives quoted on the ASX:

- unplanned outage of a large generating unit (more than 100MW) for a period of three months or more);
- unplanned outage of a large generating unit (more than 300MW) for a period of a month or more);

- fuel amount or availability (shortfall of generation fuel such as gas or coal, that was unexpected and not able to be mitigated)
- plant commitment decisions;
- generation and transmission investment decisions.

If in doubt as to whether the information you have is material, or whether it is generally available to the market, do not deal with any Securities. You should raise the matter with the General Counsel and Company Secretary.

### Review

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The Board is accountable for approving this Policy and any amendments to it. This Policy was reviewed and approved by the Board in March 2015.

This Policy will be reviewed every 24 months or earlier if determined by the Board.

### Disclosure Forms

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Disclosure forms referred to in this Policy are **attached** and are as follows:

- Appendix A – NZX Initial Disclosure Notice;
- Appendix B – ASX Form 3X - Initial Director's Interest Notice;
- Appendix C – NZX Ongoing Disclosure Notice;
- Appendix D – ASX Form 3Y - Change of Director's Interest Notice;
- Appendix E - Request for Consent to Trade in Securities.

Guidance notes for use, are included on the Disclosure Forms.



## Appendix A – NZX Initial Disclosure Notice

**NEW Directors and Senior Managers** - Under the Financial Markets Conduct Act 2013 this notice is used to disclose the relevant interests that a Director or Senior Manager has in quoted financial products (which includes a Relevant Interest) in Genesis Energy shares.

The disclosure of this notice to the NZX must be made within 5 trading days of a person's appointment as a Director or Senior Manager.

**NEW Restricted Persons (other than Directors and Senior Managers)** - If you directly report to a member of Senior Management, who is a direct report of the Chief Executive, you are a Restricted Person (as defined in Genesis Energy's Trading in Company Securities Policy), and as a matter of best practice, you are also required to fill in this notice.

This notice will not be disclosed to the NZX, but will be kept by the Company as part of its internal records.

If you have any questions about this form or how to complete this form, please contact the General Counsel and Company Secretary.



### Initial Disclosure Notice

#### Disclosure of Directors and Senior Managers Relevant Interests

Sections 297(1) and 298(1), Financial Markets Conduct Act 2013

|                                                  |
|--------------------------------------------------|
| To NZX Limited; and                              |
| Name of listed issuer:                           |
| Date this disclosure made:                       |
| Date on which issuer listed or appointment made: |

|                              |
|------------------------------|
| Genesis Energy Limited (GNE) |
|                              |
|                              |

#### Director or senior manager giving disclosure

|                                                 |
|-------------------------------------------------|
| Full name:                                      |
| Name of listed issuer:                          |
| Name of related body corporate (if applicable): |
| Position held in listed issuer:                 |

|                        |
|------------------------|
|                        |
|                        |
| Genesis Energy Limited |
|                        |
|                        |



### Summary of relevant interest (excluding specified derivatives)

|                                    |
|------------------------------------|
| Class of quoted financial product: |
| Nature of relevant interest:       |
| Number held in class:              |
| Current registered holder:         |

|                                                 |
|-------------------------------------------------|
| Ordinary Shares in Genesis Energy Limited (GNE) |
|                                                 |
|                                                 |
|                                                 |

### Summary of specified derivatives relevant interest (if applicable)

|                                                                                                                                                                                                       |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Type of derivative:                                                                                                                                                                                   |
| Class of underlying financial products:                                                                                                                                                               |
| <b>Details of derivative</b>                                                                                                                                                                          |
| The notional value of the derivative (if any) or the notional amount of underlying products (if any):                                                                                                 |
| A statement as to whether the derivative is cash settled or physically settled:                                                                                                                       |
| Maturity date of the derivative (if any):                                                                                                                                                             |
| Expiry date of the derivative (if any):                                                                                                                                                               |
| The price specified in the terms of the derivative(if any):                                                                                                                                           |
| Any other details needed to understand how the amount of the consideration payable under the derivative or the value of the derivative is affected by the value of the underlying financial products: |

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*For that derivative,-*

|                                                                                                                            |
|----------------------------------------------------------------------------------------------------------------------------|
| Parties to the derivative:                                                                                                 |
| If the director or senior manager is not a party to the derivative, the nature of the relevant interest in the derivative: |

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### Certification

|                                                                                                                                                                                                           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| I certify that, to the best of my knowledge and belief, the information contained in this disclosure is correct and that I am duly authorised to make this disclosure by all persons for whom it is made. |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|                                   |
|-----------------------------------|
| Signature of director or officer: |
| Date of signature:                |

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or

Signature of person authorised to sign on behalf of director or officer:

Date of signature:

Name and title of authorised person:

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Appendix B – ASX Form 3 X - Initial Director's Interest Notice

***Directors*** - Under the ASX Listing Rules, this notice must be issued by Directors in respect of their relevant interests in Genesis Energy shares acquired:

- By them during the IPO within 5 business days of the company listing; or
- By new Directors in respect of their relevant interest in Genesis Energy shares held by them within 5 business days of their appointment.

***This notice is not required to be completed by other Restricted Persons.***

Rule 3.19A.1

## Appendix 3X

### Initial Director's Interest Notice

- Information or documents not available now must be given to ASX as soon as available. Information and documents given to ASX become ASX's property and may be made public.

Introduced 30/9/2001.

|                |
|----------------|
| Name of entity |
| ABN            |

We (the entity) give ASX the following information under listing rule 3.19A.1 and as agent for the director for the purposes of section 205G of the Corporations Act.

|                     |  |
|---------------------|--|
| Name of Director    |  |
| Date of appointment |  |

#### Part 1 - Director's relevant interests in securities of which the director is the registered holder

*In the case of a trust, this includes interests in the trust made available by the responsible entity of the trust*

Note: In the case of a company, interests which come within paragraph (i) of the definition of "notifiable interest of a director" should be disclosed in this part.

|                              |
|------------------------------|
| Number & class of securities |
|------------------------------|

## Part 2 – Director's relevant interests in securities of which the director is not the registered holder

*In the case of a trust, this includes interests in the trust made available by the responsible entity of the trust*

| Name of holder & nature of interest<br><small>Note: Provide details of the circumstances giving rise to the relevant interest.</small> | Number & class of Securities |
|----------------------------------------------------------------------------------------------------------------------------------------|------------------------------|
|                                                                                                                                        |                              |

## Part 3 – Director's interests in contracts

Note: In the case of a company, interests which come within paragraph (ii) of the definition of "notifiable interest of a director" should be disclosed in this part.

|                                                          |  |
|----------------------------------------------------------|--|
| Detail of contract                                       |  |
| Nature of interest                                       |  |
| Name of registered holder<br>(if issued securities)      |  |
| No. and class of securities to<br>which interest relates |  |



## Appendix C – NZX Ongoing Disclosure Notice

**Directors and Senior Managers** - Under the Financial Markets Conduct Act 2013 this notice must be issued by Directors and Senior Managers in respect of their relevant interest in Genesis Energy securities acquired or disposed of by them within 5 trading days of the acquisition or disposal.<sup>1</sup>

**Restricted Persons (other than Directors and Senior Managers)** - If you directly report to a member of Senior Management, who is a direct report of the Chief Executive, you are a Restricted Person (as defined in the Policy), and as a matter of best practice, you are also required to fill in this Notice. This Notice will not be disclosed to the NZX, but will be kept by the Company as part of its internal records.



### Ongoing Disclosure Notice

#### Disclosure of Directors and Senior Managers Relevant Interests

Sections 297(2) and 298(2), Financial Markets Conduct Act 2013

|                            |  |
|----------------------------|--|
| To NZX Limited; and        |  |
| Name of listed issuer:     |  |
| Date this disclosure made: |  |
| Date of last disclosure:   |  |

#### Director or senior manager giving disclosure

|                                                 |  |
|-------------------------------------------------|--|
| Full name(s):                                   |  |
| Name of listed issuer:                          |  |
| Name of related body corporate (if applicable): |  |
| Position held in listed issuer:                 |  |

#### Summary of acquisition or disposal of relevant interest (excluding specified derivatives)

|                                              |  |
|----------------------------------------------|--|
| Class of affected quoted financial products: |  |
| Nature of the affected relevant interest(s): |  |
| <b>For that relevant interest-</b>           |  |

<sup>1</sup> Although in the case of an acquisition under an employee share scheme this time frame is 20 trading days (s 297(2) of FMCA), but as a matter of best practice and consistency, a 5 trading day notice period will be applied.

Number held in class before acquisition or disposal:

Number held in class after acquisition or disposal:

Current registered holder(s):

Registered holder(s) once transfers are registered:

**Summary of acquisition or disposal of specified derivatives relevant interest (if applicable)**

Type of affected derivative:

Class of underlying financial products:

**Details of affected derivative-**

The notional value of the derivative (if any) or the notional amount of underlying financial products (if any):

A statement as to whether the derivative is cash settled or physically settled:

Maturity date of the derivative (if any):

Expiry date of the derivative(if any):

The price specified in the terms of the derivative (if any):

Any other details needed to understand how the amount of the consideration payable under the derivative or the value of the derivative is affected by the value of the underlying financial products:

*For that derivative,-*

Parties to the derivative:

If the director or senior manager is not a party to the derivative, the nature of the relevant interest in the derivative:

**Details of transactions giving rise to acquisition or disposal**

Total number of transactions to which notice relates:

**Details of transactions requiring disclosure**

Date of transaction:

Nature of transaction:

Name of any other party or parties to the transaction (if known):

The consideration, expressed in New Zealand dollars, paid or received for the acquisition or disposal. If the consideration was not in cash and cannot be readily converted into a cash value, describe the consideration:

Number of financial products to which the transaction related:

If the issuer has a financial products trading policy that prohibits directors or senior managers from trading during any period without written clearance (a closed period) include the following details—

Whether relevant interests were acquired or disposed of during a closed period:



Whether prior written clearance was provided to allow the acquisition or disposal to proceed during the closed period:

Date of the prior written clearance (if any):

### Summary of other relevant interests after acquisition or disposal

Class of quoted financial products:

Nature of relevant interest:

*For that relevant interest,-*

Number held in class:

Current registered holder(s):

*For a derivative relevant interest,-*

Type of derivative:

### Details of derivative

The notional value of the derivative (if any) or the notional amount of underlying financial products (if any):

A statement as to whether the derivative is cash settled or physically settled:

Maturity date of the derivative (if any):

Expiry date of the derivative (if any):

The price's specified terms (if any):

Any other details needed to understand how the amount of the consideration payable under the derivative or the value of the derivative is affected by the value of the underlying financial products:

*For that derivative relevant interest,-*

Parties to the derivative:

If the director or senior manager is not a party to the derivative, the nature of the relevant interest in the derivative:

### Certification

I certify that, to the best of my knowledge and belief, the information contained in this disclosure is correct and that I am duly authorised to make this disclosure by all persons for whom it is made.

Signature of director or officer:

Date of signature:

\_\_\_\_\_

or

|                                                                          |
|--------------------------------------------------------------------------|
| Signature of person authorised to sign on behalf of director or officer: |
| Date of signature:                                                       |
| Name and title of authorised person:                                     |

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## Appendix D – ASX Form 3Y - Change of Director's Interest Notice

**Directors** - Under the ASX Listing Rules, this notice must be issued by Directors in respect of any change in their relevant interests in Genesis Energy shares within 5 business days of the change (e.g., if shares are disposed or further shares acquired, or if the registered holder of the shares changes).

*This notice is not required to be completed by other Restricted Persons.*

Rule 3.19A.2

# Appendix 3Y

## Change of Director's Interest Notice

- Information or documents not available now must be given to ASX as soon as available. Information and documents given to ASX become ASX's property and may be made public.

Introduced 30/09/01 Amended 01/01/11

|                |
|----------------|
| Name of entity |
| ABN            |

We (the entity) give ASX the following information under listing rule 3.19A.2 and as agent for the director for the purposes of section 205G of the Corporations Act.

|                     |  |
|---------------------|--|
| Name of Director    |  |
| Date of last notice |  |

### Part 1 - Change of director's relevant interests in securities

*In the case of a trust, this includes interests in the trust made available by the responsible entity of the trust*

Note: In the case of a company, interests which come within paragraph (i) of the definition of "notifiable interest of a director" should be disclosed in this part.

|                                                                                                                                                                 |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| Direct or indirect interest                                                                                                                                     |  |
| Nature of indirect interest<br>(including registered holder)<br><small>Note: Provide details of the circumstances giving rise to the relevant interest.</small> |  |
| Date of change                                                                                                                                                  |  |
| No. of securities held prior to change                                                                                                                          |  |
| Class                                                                                                                                                           |  |
| Number acquired                                                                                                                                                 |  |

|                                                                                                                                                                             |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| <b>Number disposed</b>                                                                                                                                                      |  |
| <b>Value/Consideration</b><br>Note: If consideration is non-cash, provide details and estimated valuation                                                                   |  |
| <b>No. of securities held after change</b>                                                                                                                                  |  |
| <b>Nature of change</b><br>Example: on-market trade, off-market trade, exercise of options, issue of securities under dividend reinvestment plan, participation in buy-back |  |

## Part 2 – Change of director's interests in contracts

Note: In the case of a company, interests which come within paragraph (ii) of the definition of "notifiable interest of a director" should be disclosed in this part.

|                                                                                                                                                                                         |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| <b>Detail of contract</b>                                                                                                                                                               |  |
| <b>Nature of interest</b>                                                                                                                                                               |  |
| <b>Name of registered holder<br/>(if issued securities)</b>                                                                                                                             |  |
| <b>Date of change</b>                                                                                                                                                                   |  |
| <b>No. and class of securities to<br/>which interest related prior to<br/>change</b><br>Note: Details are only required for a contract in<br>relation to which the interest has changed |  |
| <b>Interest acquired</b>                                                                                                                                                                |  |
| <b>Interest disposed</b>                                                                                                                                                                |  |
| <b>Value/Consideration</b><br>Note: If consideration is non-cash, provide details and an<br>estimated valuation                                                                         |  |
| <b>Interest after change</b>                                                                                                                                                            |  |

## Part 3 – <sup>+</sup>Closed period

|                                                                                                                                                                       |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| <b>Were the interests in the securities or contracts detailed<br/>above traded during a <sup>+</sup>closed period where prior<br/>written clearance was required?</b> |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|



|                                                                                               |  |
|-----------------------------------------------------------------------------------------------|--|
| If so, was prior written clearance provided to allow the trade to proceed during this period? |  |
| If prior written clearance was provided, on what date was this provided?                      |  |

## Request for consent to Trade in Securities

To: **[• name], [• position], Genesis Energy Limited**

In accordance with the Trading in Company Securities Policy ('Policy') and the additional trading restrictions within this Policy for 'Restricted Persons', I request Genesis Energy's consent be given to the following proposed transaction to be undertaken either by me or persons associated with me, within 10 trading days\* of notification of approval being given. I acknowledge Genesis Energy is not advising or encouraging me to trade or hold securities and does not provide any securities recommendation.

Name \_\_\_\_\_

Name of registered holder transacting (if different) \_\_\_\_\_

Address \_\_\_\_\_

Position \_\_\_\_\_

Description and number of securities \_\_\_\_\_

Type of proposed transaction Purchase/sale/other (specify) \_\_\_\_\_

Reason for proposed transaction (if transaction is to occur during a 'blackout period')?

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

I declare that I do not hold information which:

- Is not generally available to the market; and
- Would have a material effect on the price of relevant Securities if it were generally available to the market.

I know of no reason to prohibit the trading in the relevant Securities and certify that the details given above are complete, true and correct.

Signature: \_\_\_\_\_

Date \_\_\_\_\_

Genesis Energy hereby consents / does not consent to the proposed transaction described above. Any consent is conditional on the proposed transaction being completed within 10 trading days\* of the date of notification of this consent, and in compliance with the "Trading in Company Securities Policy", and "Rules for Restricted Persons".

\_\_\_\_\_  
**[• name], [• position]** on behalf of  
 Genesis Energy Limited:

Date \_\_\_\_\_

\*This period will be 2 trading days if the request is by a Restricted Person to trade in a Black-out Period.